

CHAPTER - 5

GENERAL EXCEPTIONS

Chapter IV of the Indian Penal Code deals with the general exceptions to criminal liability. There are various kinds of acts [exceptions] done under the circumstances mentioned in sections 76 to 106 which will not amount to offences under the Code.

Whereas, section 6 of the Code states that, every penal provision and illustration provided under the Code has to be understood subject to the exceptions contained in the Chapter titled "General Exceptions".

THESE EXCEPTIONS ARE:

1. Mistake of fact [Sections 76 and 79]
2. Judicial acts [Sections 77 to 78]
3. Accident [Section 80]
4. Absence of criminal intention [Sections 81 to 86 and 92 to 94]
5. Act done by consent [Sections 87 to 91]
6. Trifling act [Section 95]
7. Private defence [Sections 96 to 106].

BURDEN OF PROOF:

The onus of proving exceptions lies on the accused, who has to prove the circumstances bringing the case within any of the general exceptions. The court shall presume the absence of such circumstances.

As per **section 105 of the Indian Evidence Act, 1872**, a person accused of an offence bears the burden of proving the existence of circumstances to bring the case within any of the General Exceptions. The court shall presume the absence of such circumstances.

GENERAL EXCEPTIONS CAN BE CLASSIFIED UNDER TWO CATEGORIES:

Justifiable Exceptions: Judicial act [defined under sections 77 and 78] Necessity [defined under section 81] Consent [defined under sections 87 to 92] Good faith [defined under sections 53 and 93] Private defence [defined under section 96 to 106].

Excusable Acts: Mistake of fact [defined under sections 76 and 79] Accident [defined under section 80]

Infancy [defined under sections 82 and 83] Insanity [defined under section 84] Intoxication [defined under sections 85 and 86].

MISTAKE OF FACT - SECTION 76 AND 79

Sometimes an offence is committed by a person inadvertently. He neither intends to commit an offence nor does he know that his act is criminal. He may be totally ignorant of the existence of relevant facts. The knowledge of relevant facts is what really makes an act evil or good. Thus, if a person is not aware of the facts and acts to the best of his judgment, his act cannot be called evil. Under such circumstances he may take the plea that his acts were done under the misconception of the facts. Such a mistake of fact is acknowledged as a valid defence in section 76 and 79 of IPC.

Section 76 - Act done by a person bound or by mistake of fact believes to be bound by law - Nothing is an offence which is done by a person who is or who by reason of a mistake of fact and not by a reason of a mistake of law, in good faith believes himself to be bound by law to do it.

ILLUSTRATION - A, a soldier fires on a mob upon orders from his superior, in conformity with the commands of the law. He has committed no offence.

ILLUSTRATION - A, an officer of court of justice, upon ordered by that court to arrest Y, after due inquiry, believing Z to be Y, arrests Z. He has committed no offence.

Section 79 - Act done by a person justified or by a mistake of fact believing himself justified by law - Nothing is an offence which is done by a person who is justified by law, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith believes himself to be justified by law, in doing it.

ILLUSTRATION - A sees Z doing what appears to be murder. A, in the exercise to the best of his judgment, exerted in good faith of the power which the law gives

to all persons of apprehending murderers in the act, seizes Z, in order to bring Z before the proper authorities. A has committed no offence though it may turn out that Z was acting in self-defence.

DIFFERENCE BETWEEN SECTION 76 AND 79

The only difference between sec 76 and 79 is that in section 76, a person believes that he is bound by to do a certain act while in 79, he believes that he is justified by law to do a certain act.

Please Note: A mistake means a factual error. It could be because of wrong information, i.e., ignorance or wrong conclusion

To be eligible in either of the sections, the following conditions must be satisfied –

- (1) It is a mistake of fact and not a mistake of law that is excusable.
- (2) The act must be done in good faith.

JUDICIAL ACTS - SECTIONS 77 - 78

Act of Judge when acting judicially

- Section 77 provides that an act done in good faith by a judge in his or her judicial capacity which it believes to be given to it by law, will not be held as an offence.

Illustration: A judge, Mr. Rohit Kumar in good faith and believes to be given to it by law wrongly convicted a prisoner, Mr. Mohit Kumar, to death. He will not liable to be hanged for causing somebody's death.

Act done pursuant to the judgment or order of Court

- As per this provision, if an act done pursuant to the judgment or order of a court of justice [when the person doing the act in good faith believes that the court has jurisdiction] such act will render no offence.

Illustration: A hangman who hangs the prisoner pursuant to the order of the judge, will not be held guilty of any offence.

ACCIDENT – SECTION 80

Accidents happen despite of nobody wanting them. There is no intention on the part of anybody to cause

accident and so a loss caused due to an accident should not be considered a crime.

This is acknowledged in Section 80 of Indian Penal Code, which states that nothing is an offence which is done by accident or misfortune, and without any criminal intention or knowledge in doing of a lawful act, in a lawful manner by lawful means with proper care and caution.

Illustration - A works with a hatchet; the head flies off and kills a person standing nearby. Here, if there was no want of proper caution on the part of A, his act is excusable and is not an offence.

There are four essential conditions when a person can take the defence of an accident:

- (1) The act is done by accident or misfortune
- (2) There must not be a criminal intent or knowledge in the doer of the act
- (3) The act must be lawful, and done in a lawful manner, and by lawful means
- (4) Proper precautions must be taken while doing the act

ABSENCE OF CRIMINAL INTENTION [SECTIONS 81 TO 86 AND 92 TO 94]

NECESSITY

The Law of Jus necessitates (Necessity knows no laws) is defined and explained in Section 81 of the Indian Penal Law.

Section 81- Act likely to cause harm, but done without criminal intent, and to prevent other harm: Nothing is an offence merely by reason of its being done with the knowledge that it is likely to cause harm, if it be done without any criminal intention to cause harm, and in good faith for the purpose of preventing or avoiding other harm to person or property.

Under this provision to avail the protection the following conditions must be fulfilled:

- The circumstances must compel to do the act.
- There should not be any criminal intent of the wrong doer but knowledge of the harm should exist.
- The act must be done in good faith.

The expression 'criminal intention' means the purpose or design of doing an act if forbidden by criminal law without just cause or excuse.

ILLUSTRATION: A, in a great fire, pulls down houses in order to prevent the conflagration from spreading. He does this with the intention in good faith of saving human life or property. Here, if it be found that the harm to be prevented was of such a nature and so imminent as to excuse A's act, A is not guilty of the offence

ACT OF CHILD

It is assumed that a child does not have an evil mind and he does not do things with evil intention. He cannot even fully understand the implications of the act that he is doing. Thus, he completely lacks mens rea and should not be punished. IPC contains for following exemptions for a child –

Section 82 - Nothing is an offence which is done by a child under seven years of age.

Section 83 - Nothing is an offence which is done by a child above seven years of age and below twelve years of age who has not attained the sufficient maturity of understanding to judge the nature and consequences of this conduct on that occasion.

Through these sections, IPC acknowledges the fact that children under seven years of age cannot have sufficient maturity to commit a crime and is completely excused. In Indian law, a child below seven years of age is called Doli Incapax.

INSANITY

A person may be rendered incapable of judging an action as right or wrong due to several kinds of deficiency in mental faculty or a disease of mind. Such people are called insane. Their position is same as children below the age of discretion. From time to time several approaches have been adopted to understand insanity and to see whether a person was insane or not at the time of his act.

Section 84 incorporates the general exception pertaining to insanity. It states that nothing is an offence which is done by a person who, at the time of doing it, by the reason of unsoundness of mind, is incapable of knowing the nature of the act or that he is doing what is either wrong or contrary to law.

Thus, a person claiming immunity under this section must prove the existence of the following conditions-

1. He was of unsound mind
2. Such incapacity must exist at the time of the act

3. Due to incapacity, he was incapable of knowing –
 - (a) either the nature of the act.
 - (b) or that the act is wrong.
 - (c) or that the act is contrary to law.

M' NAGHTEN'S RULES

In this case, Daniel M'Naghten was tried for the murder of a private secretary of the then prime minister of England. He was acquitted on the ground of insanity. This caused a lot of uproar and the case was sent to bench of fifteen judges who were called upon to lay down the law regarding criminal responsibility in case of lunacy. Some questions were posed to the judges which they had to answer. These questions and answers are known as M'Naghten's Rules which form the basis of the modern law on insanity.

INTOXICATION

Several times intoxication due to drinking alcohol or taking other substances cause the person to lose the judgment of right or wrong. In early law, however, this was no defence for criminal responsibility. In recent times this has become a valid defence but only if the intoxication was involuntary.

Sections 85 & 86 of Chapter-IV explain the provisions pertaining to the wrongful acts done under the influence of intoxication.

Section 85 states that nothing is an offence which is done by a person who at the time of doing it is by reason of intoxication, incapable of knowing the nature of the act or that he is doing what is either wrong or contrary to law:

Provided that the thing which intoxicated him was administered to him without his knowledge or against his will.

Section 86 of the Indian Penal Code states that in cases where an act done is not an offence unless done with a particular knowledge or intent, a person who does the act in a state of intoxication shall be liable to be dealt with as if he had the same knowledge as he would have had if he had not been intoxicated, unless the thing which intoxicated him was administered to him without his knowledge or against his will.

The ingredients of Sections 85 and 86 are that a person will be exonerated from liability for an act done while in a state of intoxication, if he, at the time of doing it, by reason of intoxication, was-

- (a) Incapable of knowing the nature of the act; or
- (b) That he was not in a state of mind to know that the act was either wrong or contrary to law; and
- (c) That the thing which intoxicated him was administered to him without his knowledge or against his will;
- (d) And that voluntary drunkenness is not excuse for the commission of a crime.
- (e) Burden of proof lies upon the accused.

ACT DONE IN GOOD FAITH FOR BENEFIT OF A PERSON WITHOUT CONSENT

Section 92 states that if an act is done under emergency circumstance with good faith, for the benefit of the victim without its consent, and if such act causes any harm, such act will not be an offence.

- It does not extend in the following circumstances:
 - If an act is being done to cause death.
 - If a person knows the act may cause death. However, is applicable if the purpose of act is to prevent a greater harm of grievous hurt.
 - If the act is voluntarily causing grievous hurt or attempt to cause grievous hurt, unless it is for the purpose of prevention of death or grievous hurt
 - Abetment of any offence.

ILLUSTRATION: Z is thrown from his horse, and is insensible. A, a surgeon, finds that Z requires to be trepanned. A, not intending Z's death, but in good faith, for Z's benefit, performs the trepan before Z recovers his power of judging for himself. A has committed no offence.

ILLUSTRATION: Z is carried off by a tiger. A fire at the tiger knowing it to be likely that the shot may kill Z, but not intending to kill Z, and in good faith intending Z's benefit. A's ball gives Z a mortal wound. A has committed no offence.

COMMUNICATION MADE IN GOOD FAITH

Section 93 states that any communication made in good faith to a person for such person's benefit is no offence, even though such communication may cause harm to such person.

ILLUSTRATION: A, a surgeon, in good faith, communicates to a patient his opinion that he cannot live. The patient dies in consequence of the shock. A has committed no offence, though he knew it to be likely

that the communication might cause the patient's death.

ACT TO WHICH A PERSON IS COMPELLED BY THREATS

As per section 94 nothing is an offence done by a person who is compelled to do a wrongful act by fear of threats, which is accompanied by reasonable apprehension of instant death to the person who is performing the act under compulsion at that time.

Illustration: A smith compelled to take his tools and to force the door of a house for the dacoits to enter and plunder it, is entitled to the benefit of this exception.

ACT DONE BY CONSENT- SECTIONS 87 TO 91

This is based on the premise that everybody is the best judge for himself. If a person knowingly undertakes a task that is likely to cause certain damage, then he cannot hold anybody responsible for suffering that damage.

Section 87 extends the scope of accident to cases where an act was done with the consent of the victim.

Section 87 - Nothing which is not intended to cause death or grievous hurt and which is not known to the doer to be likely to cause death or grievous hurt is an offence by reason of any harm that it may cause or be intended by the doer to cause to any person above eighteen years of age, who has given consent whether express or implied, to suffer that harm; or by reason of any harm which it may be known by the doer to be likely to cause to any such person who has consented to take the risk of that harm.

ILLUSTRATION - A and Z agree to fence with each other for amusement. This agreement implies the consent by each to suffer any harm which in the course of such fencing may be caused without foul play; and if A, while playing fairly, hurts Z, A commits no offence.

Act not intended to cause death, done by consent in good faith for person's benefit

- Section 88 lays down that an act done in good faith for the victim's benefit with the victim's consent is not an offence.
- This section generally protects surgeons and surgical operations, but does not provide protection to persons who are not qualified as medical practitioners [quacks].

ILLUSTRATION: A, a surgeon, knowing that a particular operation is likely to cause the death of Z, who suffers under the painful complaint, but not intending to cause Z's death, and intending, in good faith, Z's benefit, performs that operation on Z, with Z's consent. A has committed no offence.

Act done in good faith for benefit of child or insane person, by or by consent of guardian

- Section 89 protects the acts done in good faith for the benefit of child below the age of 12 years. The consent can be either express or implied.
- There are certain exceptions of this provision:
 - It is not applicable if an act is being done to cause death
 - It is not applicable if a person knows the act may cause death. However, is applicable if the purpose of act is to prevent a greater harm of grievous hurt.
 - It is inapplicable if the act is voluntarily causing grievous hurt or attempt to cause grievous hurt, unless it is for the purpose of prevention of death or grievous hurt.
 - It will not extend to abetment of any offence.

ILLUSTRATION: A, in good faith, for his child's benefit without his child's consent, has his child cut for the stone by a surgeon knowing it to be likely that the operation will cause the child's death, but not intending to cause the child's death. A is within the exception, inasmuch as his object was the cure of the child.

Consent known to be given under fear or misconception

- A consent given under fear or injury, coercion or misconception, it will be invalid under this provision.
- A valid consent is a 'free consent' which is made without any fear or apprehension and the person has complete knowledge about the act or event that has occurred or will occur and there is nothing unknown or misrepresented about the same.
- Section 90 states that a consent given by an insane person or a child below the age of 12 years will be invalid as they are incapable of understanding the nature of act.

Exclusion of acts which are offences independently of harm cause

- Section 91 states that the provision excludes the acts which are offences independently. Consent or such acts in itself is an offence.
- Sections 87, 88 and 89 of the Code do not extend to acts which are offences independently.

ILLUSTRATION: Causing miscarriage (unless caused in good faith for the purpose of saving the life of the woman) is offence independently of any harm which it may cause or be intended to cause to the woman. Therefore, it is not an offence "by reason of such harm"; and the consent of the woman or of her guardian to the causing of such miscarriage does not justify the act.

TRIFLING ACT – SECTION 95

Based on principle of *de minimis non curat lex* – the law does not concern itself with trifles.

No act is an offence if the harm suffered is so less that a person of ordinary temper would not complain even if the act is done with intention to cause harm.

Section 95 states that nothing is an offence by reason that it causes, or that it is intended to cause, or that it is known to be likely to cause, any harm, if that harm is so slight that no person of ordinary sense and temper would complain of such harm.

ILLUSTRATION: Mr. A was travelling via Delhi Metro. At Rajiv Chowk metro station, while taking exit he stepped over the foot of Mr. B. Mr. A will be protected by the virtue of Section 95.

RIGHT TO PRIVATE DEFENCE – SECTION 96 – 106

It is said that the law of self-defence is not written but is born with us. We do not learn it or acquire it somehow but it is in our nature to defend and protect ourselves from any kind of harm. When one is attacked by robbers, one cannot wait for law to protect oneself. Bentham has said that fear of law can never restrain bad men as much as the fear of individual resistance and if you take away this right then you become accomplice of all bad men.

Right of Private Defence is provided under sections 96 to 106. Where sections 92 to 102 and section 106 deals with private defence against person and sections 103 to 105 deals with Private defence against property.

Things done in private defence

Section 96 simply states that an act done under the exercise of right of private defence, in order to protect oneself from harm or injury will not amount to an offence.

Right of private defence of the body and of property

- Section 97 gives a person right to defend not only his body and property but the body and property of any other person as well against an offence affecting the body or the property.
- The right is given against both movable and immovable property.
- The section has to be applied with compliance to restrictions provided under section 99 of the Code.

Right of private defence against the act of a person of unsound mind, etc.

- section 98 provides right of private defence against any child, insane person or intoxicated person, etc.
- Therefore, an individual has a right of private defence if an act is committed by the above-mentioned persons [whether with or without mens rea].
- It enables an individual to exercise the right of private defence against offenses which may not be considered as offenses due to insanity, intoxication, infancy, mistake of fact etc. [as discussed in above sections].

Restrictions on right to private defence

As with any right, the right to private defence is not an absolute right and is neither unlimited. It is limited by the following restrictions imposed by section 99 –

There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by a public servant acting in good faith under colour of his office though that act may not be strictly justifiable by law.

There is no right of private defence against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by the direction of a public servant acting in good faith under colour of his office though that direction may not be strictly justifiable by law.

There is no right of private defence in cases in which there is time to have recourse to the protection of the public authorities.

Extent to which the right may be exercised - The right of private defence in no case extends to the inflicting of more harm than it is necessary to inflict for the purpose of defence.

Explanation 1 - A person is not deprived of his right of private defence against an act done or attempted to be done by a public servant, as such, unless he knows or has reason to believe that the person doing the act is such public servant.

Explanation 2 - A person is not deprived of his right of private defence against an act done or attempted to be done by the direction of a public servant, unless he knows or has reason to believe that the person doing the act is acting by such direction, or unless such person states the authority under which he acts or if he has authority in writing, unless he produces such authority if demanded

Right to private defence of body up to causing death

Section 100 of IPC specifies six situations in which the right of private defence of body extends even to causing death. Section 100 - The right of private defence of the body extends under the restrictions mentioned in section 99, to the voluntary causing of death or of any other harm to the assailant if the offence which occasions the exercise of the right be of any of the descriptions here in after enumerated, namely-

First - such an assault as may reasonably cause the apprehension that death will otherwise be the consequence of such assault.

Second - such an assault as may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such assault.

Third - An assault with the intention of committing rape.

Fourth - An assault with the intention of gratifying unnatural lust.

Fifth - As assault with the intention of kidnapping or abducting.

Sixth - An assault with the intention of wrongfully confining a person under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release. Even though this section authorizes a person to cause death of another in certain situation, it is also subject to the same restrictions as given in section 99. Thus, a person cannot apply more force than necessary and must contact the authorities if there is an opportunity.

Yogendra Morarji vs State of Gujarat 1980 is an important case in which SC observed that when life is in peril the accused was not expected to weigh in golden scales what amount of force does he need to use

and summarized the law of private defence of body as under –

1. There is no right of private defence against an act which is not in itself an offence under this code.
2. The right commences as soon as and not before a reasonable apprehension of danger to the body arises from an attempt or threat to commit some offence although the offence may not have been committed and it is continuous with the duration of the apprehension.
3. It is a defensive and not a punitive or retributive right. Thus, the right does not extend to the inflicting of more harm than is necessary for defence.
4. The right extends to the killing of the actual or potential assailant when there is a reasonable and imminent apprehension of the atrocious crimes enumerated in the six clauses of section 100.
5. There must be no safe or reasonable mode of escape by retreat for the person confronted with an impending peril to life or of grave bodily harm except by inflicting death on the assailant.
6. The right being in essence a defensive right does not accrue and avail where there is time to have recourse to the protection of public authorities.

Duration of the right of private defence of body

Section 102 specifies the duration of the right of private defence of the body.

Section 102 - The right of private defence of the body commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence, though the offence may not have been committed and it continues as long as such apprehension of danger to the body continues.

The right to defend the body commences as soon as a reasonable apprehension of danger to the body arises and it continues as long as such apprehension of danger to the body continues.

Right to private defence of property up to causing death

Section 103 of IPC specifies four situations in which the right of private defence of property extends even to causing death.

Section 103 - The right of private defence of property extends, under the restriction mentioned in section 99, to the voluntary causing of death or of any other harm

to the wrong doer, if the offence, the committing of which, or attempting to commit which, occasions the exercise of the right, be an offence of any of the descriptions hereinafter enumerated, namely –

First - Robbery

Secondly - House breaking by night

Third - Mischief by fire committed on any building, tent, or vessel, which building tent or vessel is used as a human dwelling or as a place for custody of property.

Fourth - Theft, mischief or house trespass under such circumstances as may reasonably cause apprehension that death or grievous hurt will be the consequence if such right of private defence is not exercised. A person may cause death in safeguarding his own property or the property of someone else when there is a reason to apprehend that the person whose death has been caused was about to commit one of the offences mentioned in this section or to attempt to commit one of those offences.

Commencement and continuance of the right of private defence of property

Section 105 specifies the duration of the right of private defence of the property

Section 105 states that the right of private defence of the property commences as soon as a reasonable apprehension of danger to the property commences. It continues - in case of theft - till the offender has effected his retreat with the property or either the assistance of the public authorities is obtained or the property has been recovered. in case of robbery - as long as the offender causes or attempts to cause to any person death or hurt or wrongful restraint or as long as the fear of instant death or of instant hurt or of instant personal restraint continues. in case of criminal trespass - as long as the offender continues in the commission of criminal trespass or mischief. in case of house breaking by night - as long as the house, trespass which has been begun by such house breaking, continues.

Right of private defence against deadly assault when there is risk of harm to innocent person

Section 106 removes an impediment in the right of private defence. The impediment is the doubt in the mind of the defender as to whether he is entitled to exercise his right even when there is a possibility of some innocent persons being harmed by his act

It states that if in the exercise of the right of private defence against an assault which reasonably causes the apprehension of death, the defender be so situated that he cannot effectually exercise that right without risk of harm to an innocent person his right of private defence extends to the running of that risk.

ILLUSTRATION: A is attacked by a mob who attempt to murder him. He cannot effectually exercise his right of private defence without firing on the mob, and he cannot fire without risk of harming young children who are mingled with the mob. A commits no offence if by so firing he harms any of the children.

